

Court No. - 2

Case :- WRIT - C No. - 4856 of 2023

Petitioner :- M/S Maheshwari Flour Mills Sitapur Thru. Ashish Maheshwai

Respondent :- State Of U.P. Thru. Collector , Sitapur And Others

Counsel for Petitioner :- Pramod Kumar Shukla,Ashish Kumar Mishra

Counsel for Respondent :- C.S.C.,Aprajita Bansal

Hon'ble Alok Mathur,J.

Hon'ble Subhash Vidyarthi,J.

1. Heard Sri Pramod Kumar Shukla, learned counsel for the petitioner, Ms. Aprajita Bansal, learned counsel for the respondent no.3 to 6 and learned Standing Counsel appearing on behalf of the respondent nos.1 and 2.

2. The petitioner being aggrieved by the recovery proceedings initiated by the respondents has approached this court seeking a direction to set aside the recovery citation dated 18.05.2023 as well as a direction to the respondents to correct the electricity bills.

3. Ms. Aprajita Bansal, learned counsel for the respondents no.3 to 6 submits that the petitioner had earlier approached this court on the previous occasion by filing a writ petition bearing Writ Petition No.26570 (MB) of 2021 and this court by means of an order dated 17.11.2021 had interfered with the recovery citation and directed the petitioner to deposit a sum of Rs.20,00,000/- within a period of one month. The remaining amount along with interest was directed to be paid within thirty days in installments.

4. The petitioner in the present writ petition in para 15 has not

given any details as to whether he has complied with the order and in what manner has the said amount sought to be recovered from it has been deposited.

5. Ms. Aprajita Bansal, learned counsel for the respondent nos.3 to 6 states that she may be granted some time so that she can file the entire the relevant documents showing the entire outstanding dues in relation to the petitioner and also inform the court as to whether the petitioner has complied with the previous order of this court dated 17.11.2021.

6. In the light of the above, **list/put up this case on 06.06.2023** in top ten cases.

Order Date :- 2.6.2023

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Respondent :- State Of U.P. Thru. Collector , Sitapur And Others

Counsel for Petitioner :- Pramod Kumar Shukla, Ashish Kumar Mishra

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Alok Mathur, J.

Hon'ble Mrs. Jyotsna Sharma, J.

1. Heard Sri Pramod Kumar Shukla, learned counsel for the petitioner, learned Standing Counsel on behalf of the respondent nos.1 and 2 and Ms. Aprajita Bansal, learned counsel for the respondent nos.3 to 6.

2. The dispute in the present matter is with regard to outstanding electricity dues in relation to the flour mills run by the petitioner. It has been submitted that on the previous occasion recovery for an amount of Rs.48,59,609/- was issued against the petitioner and the petitioner has approached this Court by filing a Writ-C No. 26570 of 2021, which has been disposed of vide order 29.07.2022 with a direction to deposit the amount in installments.

3. It has been submitted by the petitioner that he had deposited certain amount but did not deposit the entire dues as shown in the previous order of this Court dated 29.07.2022. In the meanwhile, other dues were also sought to be released from the petitioner and notices for recovery were issued in the meantime.

4. It is stated by Ms. Aprajita Bansal, learned counsel for the respondent nos.3 to 6 that as on date the total outstanding amount of the petitioner is near about Rs.62 lakhs.

5. Counsel for the petitioner, on the other hand, submits that he has complied with the previous order of this Court to resolve the said controversy. It has further been pointed out that the petitioner has efficacious remedy of settling his dues as well as correction of the bills as per provisions contained in Clause- 6.5 of U.P. Electricity Supply Code, 2005 and the petitioner should file an application raising all his grievances annexing all the

documents with regard to it as well as payment of the bills.

6. It is informed that the Executive Engineer even has power to permit the petitioner to pay his outstanding in installments. Counsel for the petitioner submits that he may be permitted to make a suitable application before the Executive Engineer in pursuance of the provisions contain in Clause 6.5 of U.P. Electricity Supply Code, 2005.

7. Accordingly, the petition stands **disposed of** with a direction to the petitioner to file an application before the Executive Engineer in pursuance of the provisions contain in Clause 6.5 of U.P. Electricity Supply Code, 2005, within a period of 15 days. In case, such an application is made to respondent no.5, he shall consider and decide the same expeditiously preferably within the period of six weeks thereafter.

8. Till final decision is taken, no coercive steps shall be taken against the petitioner. In case, the petitioner does not move any application, the benefit of this order shall not be available to him.

Order Date :- 6.6.2023

Saif

(Jyotsna Sharma, J.)

(Alok Mathur, J.)